

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jayvee Rhoda	Team: Squad #10	CCRB Case #: 201600368	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/14/2016 9:35 PM	Location of Incident: Avenue M and Remsen Avenue	Precinct: 69	18 Mo. SOL 7/14/2017	EO SOL 7/14/2017	
Date/Time CV Reported Thu, 01/14/2016 9:38 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/14/2016 9:38 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Daniel Guida	5358	941862	069 PCT
2. POM Louis Villegas	22408	953533	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Daniel Guida	Abuse: Sergeant Daniel Guida stopped the vehicle in which § 87(2)(b) was an occupant.	
B.POM Louis Villegas	Abuse: Police Officer Louis Villegas stopped the vehicle in which § 87(2)(b) was an occupant.	
C.SGT Daniel Guida	Abuse: Sergeant Daniel Guida frisked § 87(2)(b)	
D.SGT Daniel Guida	Abuse: Sergeant Daniel Guida frisked § 87(2)(b)	
E.SGT Daniel Guida	Abuse: Sergeant Daniel Guida frisked § 87(2)(b)	
F.SGT Daniel Guida	Abuse: Sergeant Daniel Guida searched § 87(2)(b)	
G.SGT Daniel Guida	Abuse: Sergeant Daniel Guida searched § 87(2)(b)	
H.SGT Daniel Guida	Abuse: Sergeant Daniel Guida searched § 87(2)(b)	
I.SGT Daniel Guida	Abuse: Sergeant Daniel Guida searched the vehicle in which § 87(2)(b) was an occupant.	

Case Summary

On January 14, 2016, at approximately 9:35 p.m., § 87(2)(b) was in his vehicle driving to a restaurant in Brooklyn with his sister, § 87(2)(b) and his two cousins, § 87(2)(b) and § 87(2)(b) as his passengers. As he was driving, § 87(2)(b) noticed a moving unmarked vehicle operated by Sgt. Daniel Guida and PO Louis Villegas from the 69th Precinct. At Avenue M and Remsen Avenue, in Brooklyn, Sgt. Guida and PO Villegas stopped § 87(2)(b)'s vehicle (**Allegations A and B**). PO Villegas informed § 87(2)(b) that he was stopped because his rear license plate was not visible. Sgt. Guida stated that he smelled marijuana coming from the vehicle, which § 87(2)(b) denied. § 87(2)(b) gave verbal consent to Sgt. Guida to search his vehicle, because he wanted the incident to be over quickly. Sgt. Guida ordered § 87(2)(b) and his passengers to step out and they complied. Sgt. Guida allegedly frisked § 87(2)(b) and § 87(2)(b) (**Allegations C, D, and E**). Sgt. Guida also allegedly searched § 87(2)(b) and § 87(2)(b) (**Allegations F, G, and H**). Sgt. Guida then allegedly searched § 87(2)(b)'s vehicle (**Allegation I**). Nothing illegal was found in the vehicle and § 87(2)(b) was issued a summons for § 87(2)(b). There was no video footage available for this incident.

Mediation, Civil, and Criminal Histories

This complaint was not suitable for mediation because § 87(2)(b) stated that he planned on filing a lawsuit. On April 8, 2016, the NYC Comptroller's Office confirmed that a notice of claim was not filed in connection with this incident (See Board Review 1). On April 11, 2016, a FOIL request was mailed to the NYS Department of Motor Vehicles and the status of § 87(2)(b)'s summons disposition is pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer Histories

- § 87(2)(b) currently has one other open CCRB case § 87(2)(b) § 87(2)(b) § 87(2)(b).
- This is § 87(2)(b)'s (See Board Review 4) and § 87(2)(b)'s (See Board Review 5) first CCRB complaint.
- Sgt. Guida has been a member of the service for nine years and has been the subject in six prior CCRB complaints filed against him involving 18 allegations. One of those complaints, CCRB case number 201510889, is currently open. There are no substantiated CCRB allegations against Sgt. Guida. § 87(2)(g) § 87(2)(g).
- PO Villegas has been a member of the service for three years and has been the subject in three prior CCRB complaints filed against him involving four allegations. One of those complaints, CCRB case number 201510889, is currently open. There are no substantiated

CCRB allegations against PO Villegas. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

Sgt. Guida and PO Villegas acknowledged interacting with § 87(2)(b) and § 87(2)(b) § 87(2)(b) already knew Sgt. Guida's name from a previous encounter with him and he said that PO Villegas told him his name during the incident.

Recommendations

Allegation A- Abuse of Authority: Sgt. Daniel Guida stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B- Abuse of Authority: PO Louis Villegas stopped the vehicle in which § 87(2)(b) was an occupant.

It is not in dispute that Sgt. Guida and PO Villegas stopped § 87(2)(b)'s vehicle. § 87(2)(g)

§ 87(2)(b) testified that he had just left his house and was driving to a restaurant with § 87(2)(b) and § 87(2)(b) when he observed an unmarked police vehicle that he recognized as belonging to Sgt. Guida, based on a previous encounter he had with him. There was another officer, PO Villegas, in the vehicle with Sgt. Guida. When § 87(2)(b) crossed the intersection of Remsen Avenue and Avenue M, in Brooklyn, Sgt. Guida and PO Villegas stopped § 87(2)(b)'s vehicle. § 87(2)(b) denied committing any VTL violations and his windows were clear and not tinted. § 87(2)(b) asked PO Villegas why he was stopped, and PO Villegas replied it was because his license plate was not visible. § 87(2)(b) acknowledged that he had a temporary license plate affixed to the interior side of his rear windshield. PO Villegas asked § 87(2)(b) for his license and registration, but § 87(2)(b) only had a learner's permit, which he provided to PO Villegas (See Board Review 6 and 7).

§ 87(2)(b) was uncooperative with the investigation by refusing to schedule an appointment despite multiple contact attempts. § 87(2)(b) and § 87(2)(b) were also uncooperative with the investigation by failing to appear for scheduled appointments and failing to respond to subsequent contact attempts (For a detailed summary of all contact attempts and missed appointments, please See Board Review 8).

Sgt. Guida testified that he was traveling in an unmarked police vehicle with PO Villegas, when he observed § 87(2)(b)'s vehicle in front of their vehicle. § 87(2)(b)'s vehicle did not have a rear license plate- the frame in the back where the license plate is supposed to be was empty. Also, the rear windshield and rear passenger side windows of § 87(2)(b)'s vehicle were darkly tinted. Based on these observations, Sgt. Guida and PO Villegas stopped § 87(2)(b)'s vehicle. Sgt. Guida later learned from speaking with § 87(2)(b) that he had a temporary license plate affixed to the interior side of the rear windshield. However, Sgt. Guida stated that he was unable to see the temporary plate from outside § 87(2)(b)'s vehicle because his windows were tinted (See Board Review 9).

PO Villegas's testimony was consistent with Sgt. Guida's testimony and he corroborated Sgt. Guida's account that § 87(2)(b) had darkly tinted windows and no rear license plate (See Board Review 10).

According to *Vehicle and Traffic Law § 402(1)*, vehicle license plates must be "conspicuously displayed, one on the front and one on the rear of such vehicle." (See Board Review 11)

§ 87(2)(g)

Allegation C- Abuse of Authority: Sgt. Daniel Guida frisked § 87(2)(b)

Allegation F- Abuse of Authority: Sgt. Daniel Guida searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) testified that while he was still in his vehicle, he gave Sgt. Guida verbal consent to search his vehicle and his person. § 87(2)(b) gave consent because he wanted the encounter to end quickly. Upon granting consent, Sgt. Guida ordered § 87(2)(b) to step out of his vehicle. During his in-person statement at the CCRB, § 87(2)(b) stated that when he stepped out of his vehicle, Sgt. Guida frisked him. Sgt. Guida patted over § 87(2)(b)'s left front pants pocket and placed his hand inside the pocket, upon which § 87(2)(b) asked him to take his hand out. Sgt. Guida removed his hand without taking any items out of the pocket. Although § 87(2)(b) initially gave consent, he changed his mind because he remembered a prior encounter with Sgt. Guida in which Sgt. Guida threatened to plant "dope" on him. § 87(2)(b) removed the wallet that was in his left front pants pocket and handed it to Sgt. Guida, who took a look at it before returning it to § 87(2)(b). Sgt. Guida then placed his hand inside § 87(2)(b)'s jacket chest pocket. § 87(2)(b) again asked Sgt. Guida to remove his hand and he did so. However, during a follow-up call, § 87(2)(b) stated that when Sgt. Guida placed his hand in his left pants pocket, he gave him permission to remove his wallet. Sgt. Guida removed the wallet and placed it on the hood of § 87(2)(b)'s vehicle. When Sgt. Guida placed his hand in § 87(2)(b)'s right pants pocket, § 87(2)(b) gave Sgt. Guida permission to remove the money that was in the pocket. Sgt. Guida removed the money from the pocket then returned it to § 87(2)(b) (See Board Review 6 and 7).

§ 87(2)(b) (See Board Review 12) said in a phone statement that § 87(2)(b) was searched by an unspecified officer. An officer whom she did not specify attempted to search her, but she complained, stating that only a female officer could search her. The officer decided not to search § 87(2)(b). § 87(2)(b) was ultimately uncooperative with the investigation by refusing to schedule an appointment despite multiple contact attempts (For a detailed summary of all contact attempts and missed appointments, please See Board Review 8).

§ 87(2)(b) (See Board Review 13) said in a phone statement that Sgt. Guida searched the occupants of the vehicle by going into their pockets. Sgt. Guida frisked § 87(2)(b) and searched his two front pants pockets. § 87(2)(b) was ultimately uncooperative with the investigation by failing to appear for scheduled appointments and failing to respond to subsequent contact attempts (For a detailed summary of all contact attempts and missed appointments, please See Board Review 8).

Sgt. Guida testified that he did not frisk § 87(2)(b) or place his hand in any of § 87(2)(b)'s pockets. Sgt. Guida also denied removing § 87(2)(b)'s wallet or his money from his person. Sgt. Guida stated that PO Villegas did not frisk or search anyone at the scene (See Board Review 9).

§ 87(2)(g)

Allegation D- Abuse of Authority: Sgt. Daniel Guida frisked § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Guida frisked and searched § 87(2)(b) and § 87(2)(b). As stated in the previous section, § 87(2)(b) and § 87(2)(b) both said in phone statements that Sgt. Guida frisked and searched them at the scene. However, § 87(2)(b) and § 87(2)(b) were ultimately uncooperative with the investigation by failing to appear for scheduled appointments and failing to respond to subsequent contact attempts (For a detailed summary of all contact attempts and missed appointments, please See Board Review 8). § 87(2)(g)

Allegation I- Abuse of Authority: Sgt. Daniel Guida searched the vehicle in which § 87(2)(b) was an occupant.

It is not in dispute that Sgt. Guida searched § 87(2)(b)'s vehicle. § 87(2)(g)

§ 87(2)(b) testified that Sgt. Guida said that he smelled marijuana coming from § 87(2)(b)'s vehicle. § 87(2)(b) denied that he was smoking marijuana, telling Sgt. Guida that he would not smoke while § 87(2)(b) who was pregnant, was in the vehicle. § 87(2)(b) stated that no one smoked in the vehicle prior to the incident. § 87(2)(b) told Sgt. Guida that there was no marijuana in his vehicle and gave Sgt. Guida verbal consent to search his vehicle. § 87(2)(b) consented to a vehicle search because he wanted the encounter to quickly come to an end. Sgt. Guida ordered all of the occupants to exit the vehicle and step to the back. § 87(2)(b) stood at the rear of his vehicle, with his back against the trunk. § 87(2)(b) did not visually see Sgt. Guida search his vehicle, but he was certain that Sgt. Guida searched it because when he returned to his vehicle later, items were moved and displaced from their original locations. For example, mail and miscellaneous papers that were originally in the glove box were now scattered across the floor and seats (See Board Review 6 and 7).

§ 87(2)(b) (See Board Review 12) said in a phone statement that Sgt. Guida and PO Villegas said that they smelled marijuana and accused the occupants of smoking marijuana. § 87(2)(b) denied that anyone was smoking, noting that she was pregnant. The officers eventually asked everyone to exit the vehicle and the vehicle was searched. § 87(2)(b) was ultimately uncooperative with the investigation by refusing to schedule an appointment despite multiple contact attempts (For a detailed summary of all contact attempts and missed appointments, please See Board Review 8).

§ 87(2)(b) (See Board Review 13) said in a phone statement that Sgt. Guida and PO Villegas smelled marijuana, but he did not state that officers searched § 87(2)(b)'s vehicle. § 87(2)(b) was ultimately uncooperative with the investigation by failing to appear for scheduled appointments and failing to respond to subsequent contact attempts (For a detailed summary of all contact attempts and missed appointments, please See Board Review 8).

§ 87(2)(b) (See Board Review 14) said in a phone statement that Sgt. Guida and PO Villegas told the occupants that they smelled marijuana from the vehicle, but the occupants all denied the accusation. § 87(2)(b) did not mention any vehicle search in his phone statement. § 87(2)(b) was ultimately uncooperative with the investigation by failing to appear for a scheduled appointment and failing to respond to subsequent contact attempts (For a detailed summary of all contact attempts and missed appointments, please See Board Review 8).

Sgt. Guida testified that when he initially approached § 87(2)(b)'s vehicle, he smelled a strong odor of marijuana coming from the vehicle. Sgt. Guida and PO Villegas asked § 87(2)(b) whether there was any marijuana in his vehicle and whether he had been smoking marijuana earlier in the day. § 87(2)(b) replied that he was smoking marijuana earlier in the day, but that there was no marijuana in his vehicle. Without being asked by the officers, § 87(2)(b) voluntarily told Sgt. Guida and PO Villegas that they could look inside his vehicle for marijuana if they wished. Sgt. Guida and PO Villegas accepted § 87(2)(b)'s offer and ordered

all of the occupants to step out. Sgt. Guida searched the entire interior of § 87(2)(b)'s vehicle, including the driver's area and the rear passenger seats, looking around visually to see whether there was any marijuana in the vehicle. Sgt. Guida believed that he opened some compartments inside the vehicle, but he was unable to specify which compartments. The occupants of the vehicle appeared to be fine with the vehicle search and no one complained about it. Sgt. Guida searched the vehicle for approximately two minutes and did not find marijuana or anything illegal (See Board Review 9).

PO Villegas testified that as soon as § 87(2)(b) rolled down his window, he smelled a strong odor of marijuana coming from the vehicle. PO Villegas asked § 87(2)(b) to exit the vehicle due to the smell of marijuana, and § 87(2)(b) complied. § 87(2)(b) denied having any marijuana in his vehicle. PO Villegas asked § 87(2)(b) whether he could search his vehicle and § 87(2)(b) replied that the officers could search his vehicle. PO Villegas asked all of the occupants to exit the vehicle. Sgt. Guida searched § 87(2)(b)'s vehicle, but PO Villegas did not see how Sgt. § 87(2)(b) performed the search, since he was standing at the back of the vehicle with § 87(2)(b) and § 87(2)(b). § 87(2)(b) was standing on the sidewalk. Sgt. Guida did not discover anything illegal in the vehicle (See Board Review 10).

§ 87(2)(g)

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Squad: 10

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date